

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ILEEN ORTIZ,

Plaintiff, **SUMMONS**

-against-

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER BILLY JOSEPH, Shield No. 25657, POLICE OFFICER MASTRONARDI, SERGEANT BINSAFAR, and POLICE OFFICERS JOHN DOES # 1-10 (names and number of whom are unknown at present),

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to Answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 28, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

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TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Billy Joseph, Shield No. 25657, 83rd Precinct, 480 Knickerbocker Avenue,
Brooklyn, NY 11237
Police Officer Mastronardi, 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY
11237
Sergeant Binsafar, 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ILEEN ORTIZ,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER BILLY
JOSEPH, Shield No. 25657, POLICE OFFICER
MASTRONARDI, SERGEANT BINSAFAR, and POLICE
OFFICERS JOHN DOES # 1-10 (names and number of
whom are unknown at present),**JURY TRIAL DEMANDED**Defendants.
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Plaintiff ILEEN ORTIZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 30, 2017 at approximately 4:50 am plaintiff was lawfully present in the vicinity of the intersection of Irving Avenue and Bleecker Street when defendants unlawfully, stopped, seized, frisked, searched, and falsely arrested/ imprisoned plaintiff, without probable cause or legal justification. Plaintiff was unlawfully detained at Wyckoff Medical Center, the 83rd Precinct and Kings County Central Booking for approximately 30 hours. She was released from Kings County Central Booking after the Kings County District Attorney's Office declined to prosecute plaintiff because the allegations made by defendants against plaintiff did not constitute a crime and also because Police Officer Billy Joseph was unsure about the facts giving rise to plaintiff's arrest because he was not present at the scene of the arrest until after the alleged crime had already been committed. Plaintiff suffered severe emotional stress and anxiety caused by being falsely arrested/ imprisoned by the officers. While she was detained in a holding cell at the 83rd Precinct she became very upset while she was in a cell and began to yell, cry, and banged her head multiple times against the wall. Thereafter, plaintiff became nauseous, suffered from severe headaches, and began vomiting. Plaintiff suffered multiple contusions to her forehead and behind her left ear. Plaintiff received treatment for the injuries at Wyckoff Medical Center. The individually named defendant police officers also unlawfully searched plaintiff without reasonable suspicion or probable cause to believe plaintiff committed a crime and also

intentionally and/or negligently subjected plaintiff to emotional distress. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, confined, falsely imprisoned/ arrested, assaulted, battered, denied plaintiff the right to due process/ right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

1. Plaintiff Ileen Ortiz is a resident of the state of New York.
2. Defendant Police Officer Billy Joseph, Shield No. 25657, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant Police Officer Billy Joseph, Shield No. 25657, is and was at all times relevant herein, assigned to the 83rd Precinct.
4. Defendant Police Officer Billy Joseph, Shield No. 25657, is being sued in his individual and official capacity.
5. Defendant Police Officer Mastronardi, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Defendant Police Officer Mastronardi is and was at all times relevant herein, assigned to the 83rd Precinct.
7. Defendant Police Officer Mastronardi is being sued in his individual and official capacity.
8. Defendant Sergeant Binsafar, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
9. Defendant Sergeant Binsafar is and was at all times relevant herein, assigned to the 83rd Precinct.
10. Defendant Sergeant Binsafar is being sued in his individual and official capacity.
11. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
12. Defendants New York City Police Officers John Does # 1-10 are being sued in their individual and official capacities.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and in accordance with New York State law and plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. By way of background, on the night of July 29-July 30, 2017 plaintiff Ileen Ortiz attended a concert with her girlfriends and returned home from the concert at approximately 4:00 am on July 30, 2017.

20. When plaintiff returned home, her boyfriend was hanging out in front of their home with several friends.

21. In fact there were numerous people on his block hanging out in front of their homes with their family and friends because it was a beautiful summer night.

22. When plaintiff arrived home she told her boyfriend, Akai Del, that she was going upstairs because she had a headache.

23. Her boyfriend remained outside for a few minutes and then went upstairs to see if plaintiff was okay.

24. When plaintiff's boyfriend went upstairs he spoke with plaintiff and at some point during the conversation he told her that he did not like one of the girlfriends she went to the concert with.

25. Plaintiff became upset with her boyfriend for criticizing her girlfriend and began arguing with Akai Del about it. However, before the argument escalated plaintiff told Akai Del that she was going to take a walk and get some fresh air and she left their home at approximately 4:30 am.

26. Plaintiff walked to the vicinity of Bleecker Street and Irving Avenue (located around the corner from their home) where she sat down on the front stoop of a building.

27. Approximately 10 minutes after plaintiff sat down on the stoop, she saw Akai Del walk around the corner toward her.

28. Akai Del approached plaintiff and began speaking with her.

29. Defendants stood nearby and watched and listened as Akai Del spoke to plaintiff. Plaintiff was completely aware that the police officers were standing approximately 10 feet away watching her.

30. Akai Del asked plaintiff to come home, but plaintiff told him that she was not coming home yet.

31. Plaintiff asked Akai Del where her phone was because she realized she forgot it inside of their home.

32. Akai Del told plaintiff that he did not know where her phone was. Plaintiff told Akai Del to check his phone to see whether it was her phone. Akai Del checked the phone and realized that he took the wrong phone with him when he left their home. The phone he was holding was plaintiff's phone and she told him to give the phone to her.

33. The defendants continued to stand nearby without saying anything throughout Akai Del's interaction with plaintiff. Additional officers arrived at the scene while plaintiff was speaking with Akai Del.

34. When Akai Del realized he had plaintiff's phone, he tossed the phone in plaintiff's direction, but the phone landed in the street.

35. Plaintiff walked over to where the phone landed and picked up the phone.

36. At approximately the same time plaintiff was picking up the phone, the officers attacked Akai Del and physically threw him onto the ground.

37. Neither plaintiff nor Akai Del had any interaction with the officers before they threw Akai Del to the ground.

38. Then the officers grabbed Akai Del's hands to place him in handcuffs and in the process of handcuffing Akai Del the officers bent his right pinky finger backwards, causing Akai Del to suffer from a broken finger. Akai Del screamed in pain and told the officers they were breaking his finger.

39. Plaintiff's phone was not broken when she picked it up.

40. Plaintiff told the officers to get off of Akai Del and plaintiff attempted to video record the incident with her cell phone when she realized they were injuring her boyfriend.

41. One officer said to another officer "Get this bitch out of here!," referring to plaintiff.

42. Police Officer Mastranardi said "lock this stupid bitch up" and instructed PO Billy Joseph, Shield # 2565, who had just arrived at the scene and did not know what occurred before he arrived, to take over the arrest of plaintiff.

43. Police Officer Joseph handcuffed plaintiff, falsely arrested her, without probable cause and placed her in the rear of the police vehicle.

44. Police Officer Joseph secured the handcuffs on plaintiff, without probable cause or legal justification to believe she committed a crime.

45. Officer Joseph did not know whether plaintiff was attacked by her boyfriend or visa versa or whether an attack even occurred.

46. Police Officer Joseph arrested plaintiff and charged her with assault with intent to cause physical injury.

47. However, the allegations against plaintiff were fabricated and were not even sufficient to charge plaintiff with the crimes she was accused of committing.

48. At no time relevant herein did the officers possess any facts that suggested plaintiff committed an assault or any other crime.

49. Nevertheless, plaintiff was falsely arrested, without probable cause and charged by the officers with Assault.

50. Plaintiff was transported to the 83rd Precinct where she was unlawfully searched, fingerprinted, photographed, and detained in a holding cell.

51. Plaintiff suffered severe emotional stress and anxiety caused by being falsely arrested/ imprisoned by the officers.

52. While plaintiff was detained in a holding cell at the 83rd Precinct she became very upset while she was in a cell and began to yell, cry, and banged her head multiple times against the wall.

53. Thereafter, plaintiff became nauseous, suffered from severe headaches, and began vomiting.

54. Plaintiff suffered multiple contusions to her forehead and behind her left ear.

55. Plaintiff received treatment for the injuries at Wyckoff Medical Center.

56. Plaintiff suffered from a severe headache and was required to receive a CAT scan at the hospital.

57. Plaintiff was prescribed Motrin and eventually released back into police custody.

58. After plaintiff was released from Wyckoff Medical Center, she was transported back to the 83rd Precinct where plaintiff was detained until the early morning hours of July 31, 2017 when she was transported to Kings County Central Booking where the unlawful detention continued.

59. The Kings County District Attorney's Office declined to prosecute plaintiff because there was not probable cause to prosecute her for a crime and ordered her to be released after she was unlawfully detained and falsely arrested for 30 hours

60. At no time relevant herein did plaintiff commit a crime, nor did the defendants possess an objective factual basis to establish probable cause to believe plaintiff committed a crime or violated the law in any way.

61. At no time did plaintiff resist arrest in any manner.

62. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

63. The unlawful frisk, search, false arrest, false imprisonment, malicious prosecution, assault, battery, denial of the right to due process and denial of the right to a fair trial, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights.

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, frisked, unlawfully seized, unlawfully searched, falsely arrested and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

75. The conduct of defendants in stopping, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

82. Defendants lacked probable cause to search plaintiff.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The use of excessive force by defendants against plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

89. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SIXTH CAUSE OF ACTION

Assault

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the

real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants owed a duty of care to plaintiff.

105. To the extent defendants claim that plaintiff's physical injuries were not caused by the defendants' intentional actions during the course of plaintiff's arrest, and instead were accidentally caused by defendants either before, during, or after they arrested plaintiff then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

106. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

107. All of the foregoing occurred without any fault or provocation by plaintiff.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. By forcing plaintiff to be transported to the Hospital for medical treatment in handcuffs and iron leg shackles, without any basis for placing plaintiff in such severe restraints and by forcing plaintiff to endure the humiliation of being assaulted, battered, and falsely arrested

in front of her family and friends, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

113. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

117. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. The above-described conduct by defendants in forcing plaintiff to be transported to the Hospital for medical treatment in handcuffs and iron leg shackles, without any basis for placing plaintiff in such severe restraints and by forcing plaintiff to endure the humiliation of being assaulted, battered, and falsely arrested in front of her family and friends was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

119. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

120. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

121. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare, and justify the award of punitive damages.

122. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

126. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Failure to Intervene

129. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein.

130. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

131. Defendants failed to intervene to prevent the unlawful conduct described herein.

132. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

133. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

134. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

135. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

137. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

138. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ileen Ortiz demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 28, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 28, 2018

_____/s/
DAVID M. HAZAN